

Software Services Agreement

Mobile ordering & rewards application — Founding Customer

Template notice (delete before sending): starting draft written in plain language — have a small-business attorney in your state review it before heavy reliance. Fill every blank, delete this box, then upload to DocuSign and drop signature/date fields onto the last page.

This agreement is between:

Provider: _____ ("**Provider**"), the company building and operating the app

Client: _____ ("**Shop**"), located at

Effective date: _____

1. What Provider delivers

Provider will build, host, maintain, and support a branded mobile ordering application for the Shop, including: (a) a customer-facing app carrying the Shop's name, logo, colors, and menu, with order-ahead, payment, and a points-based rewards program whose rules the Shop controls; (b) an order dashboard for the Shop's staff usable on the Shop's existing devices; and (c) launch materials (QR codes for the register/tables) and staff training. App Store / Google Play listings, if added later, are handled under a separate addendum (Apple requires the Shop's own developer account, ~\$99/yr, paid by the Shop).

2. Founding-customer pricing

- (a) Setup fee: **\$0** — Provider charges no build or setup fee.
- (b) Service fee: **\$312 per month**, fixed for **12 months** from the Launch Date, then Provider's then-current base rate with at least 30 days' written notice of any change.
- (c) **Billing begins on the Launch Date** — the day the Shop's app is live and able to take real orders — not at signing.
- (d) Provider takes **no percentage of the Shop's sales**.

3. Payments, refunds, and taxes

Customer payments are processed through the Shop's own Stripe account. The Shop is the merchant of record: sales are the Shop's sales, deposited by Stripe directly to the Shop's bank account. Stripe's

processing fees (approx. 2.9% + 30¢ per transaction, set by Stripe) are borne by the Shop. Refunds, chargebacks, sales-tax collection and remittance, and all obligations of selling food and beverages remain the Shop's. Provider never receives, holds, or transmits the Shop's sales funds.

4. What the Shop provides

(a) Menu content (items, prices, descriptions) and updates — the Shop is solely responsible for menu accuracy, including any allergen or dietary claims; (b) its logo and brand assets, which the Shop licenses to Provider solely to build and operate the Shop's app; (c) completion of Stripe's onboarding (about 10 minutes); (d) a tablet or phone at the counter running the order dashboard during hours the app is accepting orders.

5. Launch timeline

Provider targets launch within **6 weeks** of receiving the Shop's menu, logo, and completed Stripe onboarding. If the app is not live within **10 weeks** of that date, the Shop may cancel this agreement in writing and receive a full refund of anything paid.

6. Term and cancellation

After launch this agreement runs month-to-month. **Either party may cancel with 30 days' written notice, for any reason, with no penalty.** Upon cancellation: Provider will deliver the Shop's customer list and rewards data in a standard spreadsheet format within 14 days, keep the app running through the notice period, then deactivate it and delete the Shop's data (except as law requires retention).

7. Who owns what

- (a) Provider owns the software platform, code, and all improvements — including those suggested by the Shop.
- (b) The Shop owns its brand, menu content, and **its customer data** (names, phone numbers, star balances, order history collected through the Shop's app).
- (c) Each party licenses the other only what is needed to operate the service, only for as long as this agreement lasts.

8. Customer data and privacy

The app collects the minimum needed to operate: customer first name, phone number, and order history. Provider will: (a) use this data only to operate the Shop's app; (b) never sell it or share it with third parties other than service providers needed to run the app (e.g., hosting, Stripe); (c) maintain a plain-language privacy policy inside the app; (d) honor customer deletion requests; and (e) notify the Shop promptly of any data breach affecting its customers. Payment card data is handled entirely by Stripe and never touches Provider's systems.

9. Service level and support

Provider will make reasonable efforts to keep the app available and will respond to support requests within one business day (same-day during the Shop's posted hours for order-blocking issues). The app is an additional sales channel: an outage never prevents the Shop from serving walk-in customers. Provider may briefly take the service down for maintenance, preferring off-peak hours. The Shop acknowledges that the service depends on third-party infrastructure — hosting providers, payment processors, and internet carriers — that no small software provider controls, and that occasional downtime is a normal characteristic of any online service, including those of much larger companies.

10. Disclaimers and limitation of liability

The service is provided "as is." Provider does not guarantee uninterrupted availability or any particular sales results. **Provider is not liable for losses arising from service interruptions, downtime, or server failures**, including failures of third-party hosting, payment processing, or telecommunications providers, or from events beyond Provider's reasonable control (including power or internet outages, natural disasters, and third-party service discontinuations). If an outage caused by Provider's service lasts more than 24 consecutive hours, the Shop's sole remedy is a pro-rata credit of that month's fee for the downtime. To the maximum extent permitted by law: neither party is liable to the other for indirect, incidental, or consequential damages (including lost profits or lost sales during downtime), and Provider's total liability under this agreement is capped at the fees the Shop paid in the three (3) months before the claim arose. Nothing in this section limits liability for gross negligence, willful misconduct, or a party's indemnification obligations.

11. Indemnification

The Shop will defend and hold Provider harmless from claims arising out of the Shop's products (food and beverage sold), its menu content and claims, and its tax obligations. Provider will defend and hold the Shop harmless from claims that the software platform itself infringes a third party's intellectual-property rights.

12. General

This is the entire agreement between the parties and replaces any earlier sign-up sheet or letter of intent. Changes must be in writing (email confirmation from both parties counts). Neither party may assign this agreement without the other's consent, except Provider may assign it to a company it forms for this business. The parties are independent businesses — this creates no partnership or employment relationship. This agreement is governed by the laws of the State of _____, and disputes will be resolved in the courts of _____ County. If any clause is found unenforceable, the rest still stands.

Provider — signature

Shop — signature

Name, title, date

Name, title, date